

MASTER SERVICE AGREEMENT

This Master Service Agreement (hereinafter referred to as the "Agreement") is made as of _____, the Effective Date, by and between:

Continuum Care Management (hereinafter referred to as the "Company") having its principal place of business at 3601 Market Street, 1603, Philadelphia, PA, 19104, and;

[Client Name] (hereinafter referred to as the "Client") with its principal place of business at _____].

The Company and the Client are collectively referred to as the "Parties" and the "Party" individually.

WHEREAS, Company is a tech-enabled healthcare organization specializing in clinical care coordination, Remote Physiologic Monitoring (RPM), and Chronic Care Management (CCM) support services (the "Services"); and.

WHEREAS, Client is a medical practice seeking to engage an independent contractor to provide specialized clinical, technological, and administrative support services to assist Client in delivering continuous care to its eligible patient population.

NOW THEREFORE, in consideration of the mutual promises and covenants set forth herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties desire to enter into this Agreement to establish the terms and conditions under which Company will perform the Services on behalf of Client:

1. COMPANY'S SERVICES.

The specific care management and remote monitoring programs covered by this Agreement, together with the corresponding services and fees, are those set forth in Exhibit A, which may include Chronic Care Management (CCM), Remote Physiologic Monitoring (RPM), Principal Care Management (PCM), Remote Therapeutic Monitoring (RTM), and Behavioral Health Integration. Parties may add or remove covered programs by amending Exhibit A in a writing signed by both Parties, without further amendment to this Agreement. Company shall not bill Medicare directly for any program under this Agreement, and Client shall not bill any two programs designated in Exhibit A as concurrently restricted for the same patient in the same calendar month, including Principal Care Management (PCM) together with Chronic Care Management (CCM), or Remote Therapeutic Monitoring (RTM) together with Remote Physiologic Monitoring (RPM).

Client engages Company on an exclusive basis to provide the Services for all patients enrolled in the Services under this Agreement. During the Term, Client shall not retain, engage, or contract with any other third party to provide the Services, or substantially similar care management or remote monitoring services, for any patient enrolled in the Services under this Agreement. This exclusivity does not limit Company's rights under Section 1(vii), and a breach of this provision by Client constitutes a material breach subject to Section 6.

(i) Company shall provide qualified clinical personnel as Parties shall agree, including licensed and certified staff such as registered nurses, physician assistants, nurse practitioners, licensed practical nurses, and certified or registered medical assistants to act as clinical staff under the general supervision of Client's practitioners. Company will conduct monthly care coordination calls, review transmitted physiologic data, and perform triage according to Client's approved, patient-specific care plans.

(ii) Company shall grant Client access to a HIPAA-compliant remote monitoring software platform to review patient physiologic data. The responsibility for purchasing, supplying, and shipping the cellular-connected physiologic monitoring devices (e.g., blood pressure cuffs, weight scales) to eligible patients shall be mutually agreed upon by Parties and explicitly designated in the attached Exhibit A. In the event Company is designated

as the responsible Party to provide the device, Company shall coordinate the direct-to-patient shipment and initial setup.

(iii) Company shall track all clinical time spent per patient and provide monthly, audit-ready data logs to Client in a commercially reasonable format that captures the data elements necessary to support the applicable Medicare CPT codes. These logs are provided solely to support Client's lawful billing of applicable Medicare CPT codes (e.g., 99490, 99454, 99457).

(iv) Company shall act strictly in an administrative and clinical support capacity. Client and its designated licensed clinicians retain ultimate, absolute authority over all medical diagnoses, treatment plans, prescriptions, and direct patient care decisions. Company will not provide medical diagnoses or alter care plans without the explicit direction of Client.

(v) Company shall assist Client in identifying eligible patients by accessing electronic medical records, Company is hereby authorized, acting as clinical staff under the general supervision of Client's practitioners, to conduct telephonic outreach to such patients. Company shall explain the nature of the programs, inform patients of any applicable cost-sharing (co-payments or deductibles), and advise that only one practitioner can furnish these services during a calendar month.

(vi) Company shall obtain verbal or written consent from the patient and maintain documentation of such consent in an easily retrievable manner, prior to the initiation of billable services, and for Medicare patients in strict compliance with current Centers for Medicare & Medicaid Services (CMS) regulations. Company performs these initiation activities purely in an administrative and clinical support capacity on behalf of Client. Consent shall be obtained on substantially the same basis as is set forth in Exhibit B.

(vii) Company shall retain the unrestricted right to provide similar or identical services to any other medical practice, healthcare organization, or third party, during or after the Term of this Agreement, and nothing in this Agreement shall be construed to restrict such activity.

(viii) Company shall not provide real-time, continuous, or twenty-four (24) hours per day / seven (7) days per week monitoring, and are not emergency, urgent-care, or life-safety services. Company's clinical staff review transmitted physiologic data and perform triage during Company's normal business hours, and Company does not guarantee that any reading, alert, transmission, or patient message will be received, reviewed, or acted upon within any particular time period. Services do not replace, and are not a substitute for, emergency care, the independent medical judgment of Client's practitioners, or the twenty-four (24) hour access to care for which Client is responsible under Section 4(viii).

2. MILESTONES

Company agrees to fulfill the following milestones during the Agreement period:

To ensure the timely and compliant deployment of the programs, both Parties agree to target the following implementation milestones following the Effective Date of this Agreement. Delays caused by Client (e.g., failure to provide necessary EMR access) will result in a corresponding extension of these target dates.

Milestone 1: Kickoff & EMR Integration

Client agrees to provide Company with secure, mutually agreed upon access to the Client's Electronic Medical Record (EMR) system. Company will assist Client to identify the initial cohort of patients.

Milestone 2: Patient Outreach & Device Deployment

Company will begin direct outreach to eligible patients to obtain documented consent for the programs. Upon consent, the responsibility for the direct-to-patient shipment and initial setup of the necessary cellular-connected physiologic monitoring devices shall be executed based upon the mutually agreed-upon terms designated in Exhibit A. If Company is designated as the responsible party for device provision, Company

shall coordinate shipment and setup. If Client elects to purchase and supply the devices directly, Client shall be responsible for obtaining the required devices within thirty days of the decision to obtain them, to ensure no delay in active monitoring. If Client fails to obtain the devices within such a time period, Company shall have the right to suspend services, terminate the agreement or take over the responsibility for providing devices all at Company's option and discretion.

Milestone 3: Program Go-Live & Active Monitoring

Upon completion of Milestone 2, Company shall notify Client in writing that the program is ready to go live. The date of such notification shall constitute the official Program Go-Live Date and shall mark the commencement of the Initial Term under Section 5 of this Agreement. From this date, Company's clinical staff will begin active physiologic data monitoring, conduct monthly 20-minute care coordination calls, and execute Client's approved care plans. Client's acknowledgment of this notification, whether by written response, email confirmation, or continued participation in the program, shall constitute acceptance of the Program Go-Live Date. Program go-live does not preclude ongoing patient enrollment. Company shall continue outreach and enrollment activities throughout the Term of this Agreement as additional eligible patients are identified or previously declined patients elect to participate.

Milestone 4: Billing Reconciliation & Invoicing

By the 5th business day of each subsequent month, Company will deliver a comprehensive, audit-ready time log to the Client detailing all billable CPT codes rendered in the prior month. Concurrently, Company will issue its invoice to Client based on the fees set forth in Exhibit A.

3. COMPENSATION

Parties expressly acknowledge and agree that the compensation paid to Company under this Agreement represents the fair market value of the Services rendered, negotiated at arm's length. No part of the compensation is intended to be, nor shall it be construed as, an inducement or reward for the referral of patients or the generation of business reimbursable under Medicare, Medicaid, or any other federal or state healthcare program. The fees outlined in "Exhibit A" are fixed, independently determined, and do not take into account the volume or value of any referrals or other business generated between Parties. Client shall pay Company fees regardless of receipt or no receipt of payment from any payor. Company's fees are in no way contingent upon Client receiving payment from any party.

(i) Client shall have thirty (30) days to pay Company's monthly invoice which shall be provided within five (5) business days of the end of the prior month. If Client in good faith disputes a portion of an invoice, it shall be required to pay the remainder of the invoice amount hereunder.

(ii) For each month for which Client's payment is late, Company shall charge and Client shall pay a penalty of 1.5% of the invoiced amount up to any limits established pursuant to state law.

(iii) If at any time Client is forty-five (45) days late in payment, Company shall have the right to suspend software access and the Services until the balance is paid in full. Upon such suspension, the medical and clinical oversight of participating patients shall revert immediately and totally to Client. Failure to remit payment within forty-five (45) days of the invoice due date shall constitute a material breach of this Agreement, entitling Company to exercise all remedies available hereunder including but not limited to suspension of services, termination for cause, and recovery of device costs pursuant to Section 3(v).

(iv) If Client's account is thereafter delinquent, Company shall have the right to engage a collection agency as well as attorney services to collect the monies owed. Client shall have the responsibility to pay all costs including agency and attorneys' fees and court costs. This provision shall survive termination of this Agreement.

(v) If Company supplies devices for patient use and Client materially breaches this Agreement, Client shall be obligated to pay Company the full original cost of all devices shipped to patients as of the breach date,

regardless of whether such devices are returned. This obligation survives termination of this Agreement. Client shall have no obligation to pay for devices under this Section 3(v) in connection with a termination pursuant to Section 6(i).

4. CLIENT RESPONSIBILITIES.

(i) Client, through its licensed physicians and practitioners, retains absolute and sole authority over all medical decision-making, patient diagnoses, treatment plans, and the prescribing of medications. Furthermore, Client retains the sole responsibility for ensuring that all services billed to third-party payers meet the requisite medical necessity guidelines.

(ii) Client shall collaborate with Company in identifying patients who meet the medical necessity requirements for services, and ensuring that for Medicare patients, an appropriate initiating visit has been conducted by the billing practitioner in accordance with CMS guidelines.

(iii) Client shall make available to Company personnel, at no cost to Company, access to Client's electronic medical record to identify eligible patients, document the Services, and otherwise perform Company's obligations under this Agreement. Company shall comply with the Business Associate Addendum attached hereto as Exhibit C.

(iv) Client shall notify Company promptly, and no later than five (5) business days after becoming aware, of any enrolled patient's death, disenrollment, opt-out, inpatient or skilled-nursing admission, or loss of eligibility for the Services.

(v) For each enrolled patient, Client shall ensure that a patient-specific, comprehensive care plan is established and kept current as required by CMS. Company may provide care plan templates and, acting as clinical staff under the general supervision of Client's practitioners, may assist in preparing and updating each patient's individualized care plan. Client, through its billing practitioner, shall review, approve, and retain ultimate responsibility for each care plan, which shall remain accessible to both Parties.

(vi) Client shall at all times maintain a licensed practitioner who provides the general supervision required for Company's clinical staff to furnish the Services and for Client to bill the applicable codes.

(vii) Client is responsible for verifying each enrolled patient's coverage and eligibility for the Services and for confirming, to the extent determinable by Client, that no other practitioner is furnishing or billing the same service for the same patient in the same calendar month.

(viii) Emergency Care; 24/7 Access for Urgent Needs. Client, through its licensed practitioners, retains sole responsibility for the emergency and urgent medical care of its patients. For each enrolled CCM patient, Client is responsible for ensuring twenty-four (24) hour per day, seven (7) day per week access to care to address the patient's urgent needs, as required by CMS, through Client's own after-hours or on-call coverage; Services do not satisfy, and are not a substitute for, that requirement. Client is responsible for informing patients that Services are not for emergencies and for instructing patients to seek emergency care (for example, by calling 911) in the event of an emergency.

5. TERM.

This Agreement shall commence on the Effective Date and shall remain in full force and effect for an initial period of three (3) years (the "Initial Term"), which Initial Term shall be calculated beginning with the completion of Milestone 3, hereunder. Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one (1) year periods (each a "Renewal Term"), unless either Party provides written notice of its intent not to renew at least sixty (60) days prior to the expiration of the then-current term. Company shall have the right to increase its fees hereunder upon no less than thirty days' notice to Client prior to the start of any Renewal Term.

6. TERMINATION.

(i) Company may terminate this Agreement at any time, without cause, by providing Client at least sixty (60) days' prior written notice.

Client shall have no right to terminate this Agreement without cause during the first eighteen (18) months following the Program Go-Live Date, except as follows: Client shall have a single, one-time right to terminate this Agreement without cause and without penalty, exercisable only by providing Company at least ninety (90) days' prior written notice, and only where such notice results in a termination effective date of the eighteen (18)-month anniversary of the Program Go-Live Date (the "Free Exit Window").

Beginning on the eighteen (18)-month anniversary of the Program Go-Live Date, and continuing thereafter, Client may additionally terminate this Agreement without cause at any time by providing Company at least ninety (90) days' prior written notice, provided Client pays Company, as a condition of such termination, an early termination fee equal to six (6) months of Client's average monthly invoiced fees under this Agreement, calculated based on the six (6) months immediately preceding the notice of termination (the "Buyout Exit").

If Client terminates pursuant to the Free Exit Window or the Buyout Exit, it shall not enter into an agreement for similar Services for a period of six (6) months after termination. "Similar Services" shall mean chronic care management, remote physiologic monitoring, or substantially equivalent Medicare-reimbursed care coordination services. This provision shall survive termination of this Agreement.

(ii) Termination for cause: Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of such breach specifying the breach. Notwithstanding the foregoing, Client's failure to remit payment within forty-five (45) days of an invoice due date shall constitute a material breach for which the thirty (30)-day cure period in this Section 6(ii) shall not apply, and Company may terminate this Agreement for cause immediately upon written notice.

(iii) Effect of termination: Upon the termination of this Agreement, Company shall cease providing all Services. Client shall be responsible for payment of all fees earned by Company for Services rendered up to and including the effective date of termination. To ensure continuity of patient care, Company agrees to cooperate in good faith to securely transfer any necessary patient data back to Client in accordance with the attached Business Associate Agreement (BAA). This provision shall survive termination of this Agreement.

7. REPRESENTATIONS AND WARRANTIES.

Company and Client represent and warrant to each other that they are business entities in good standing and compliance with the laws of the Commonwealth of Pennsylvania, that they will comply with all applicable laws hereto, that all of their personnel, respectively are duly licensed or authorized to perform their services hereunder, and that the Parties have entered into this Agreement freely and voluntarily.

8. CONFIDENTIALITY.

Parties shall keep confidential and agree not to disclose to third parties without the disclosing Party's prior written approval, the professional and business practices, financial statements, financial information or other privileged information ("Confidential Information") of the disclosing Party. Confidential Information disclosed pursuant to this Agreement shall only be used in furtherance of and or as contemplated by the performance of this Agreement. The foregoing obligations regarding confidentiality shall not apply to information that (a) a Party can show was known to it prior to disclosure by the disclosing Party, (b) is or becomes public knowledge through no fault of the disclosing Party, (c) is lawfully disclosed to the disclosing Party by a third party, (d) is independently developed by the disclosing Party, or (e) is required by law or regulation to be disclosed. In the event that Confidential Information is required to be disclosed pursuant to subsection (e) herein, the Party required to make disclosure shall notify the other to allow that Party to assert whatever exclusions or

exemptions may be available to it under such law or regulation. This provision shall survive termination of this Agreement.

9. INDEMNIFICATION.

(i) Each party shall indemnify and hold the other harmless, including its respective directors, officers, employees and agents, from and against any and all costs, losses, damages, expenses and liabilities (including without limitation reasonable attorneys' fees) caused by or incurred as a result of the indemnifying party's breaches of any of the representations, warranties herein or negligence in the performance of their respective duties hereunder. Each Party shall be responsible for the professional acts and omissions of its own personnel. Company shall maintain professional liability insurance covering the clinical support activities of its personnel. Notwithstanding the foregoing, Company shall have no liability for any medical diagnosis, treatment decision, prescription, determination of medical necessity, or other exercise of independent medical judgment, all of which remain the sole responsibility of Client and its licensed practitioners pursuant to Sections 1(iv) and 4(i). Company shall likewise have no liability arising from or relating to the limitations on the Services set forth in Section 1(viii), including the absence of real-time, continuous, twenty-four-hour, or emergency monitoring.

(ii) Billing and Recoupment Allocation. In the event any payor denies, recoups, or demands repayment of amounts paid to Client for services supported under this Agreement: (a) to the extent such denial or recoupment is directly and solely attributable to Company's failure to accurately record or report clinical time, data-transmission days, or patient consent as required hereunder, Company shall reimburse Client the recouped amount attributable to such failure, subject to the limitation in Section 10; and (b) to the extent such denial or recoupment arises from medical necessity determinations, patient eligibility, coding or claim-submission decisions, the absence of a qualifying initiating visit, or any other matter within Client's responsibilities under Section 4, Client shall bear such amounts and shall have no claim against Company therefor. Company shall promptly notify Client in writing upon discovering any documentation error or inaccuracy affecting claims previously billed by Client. Each Party shall promptly notify the other of any payor audit or records request relating to the Services and shall reasonably cooperate, at its own expense, in responding thereto. Company shall retain its time logs and service documentation for a period of ten (10) years following the date of service.

10. LIMITATION OF LIABILITY.

Company shall in no way, without limitation, be liable to Client for indirect, special, or consequential damages arising out of this Agreement, including but not limited to loss of profits, equipment, or other costs. In no event shall Company's liability exceed the fees paid to it by Client during the previous 12 month period.

11. DISPUTE RESOLUTION.

(i) Arbitration. Any controversy, dispute, or claim arising out of or relating to this Agreement, or the breach thereof, that cannot be resolved through good faith negotiations between Parties within thirty (30) days shall be settled by binding arbitration pursuant to the rules of arbitration of the American Health Law Association Alternative Dispute Resolution Service, provided that either Party may seek injunctive or other equitable relief in a court of competent jurisdiction for any actual or threatened breach of Sections 8, 19, or 21. The arbitration shall be conducted before one (1) single, neutral arbitrator mutually agreed upon by Parties. The arbitration shall take place in Philadelphia, Pennsylvania, and the laws of the Commonwealth of Pennsylvania shall govern the dispute. The decision of the arbitrator shall be final and binding upon Parties, and judgment on the award rendered by the arbitrator may be entered in any court having competent jurisdiction thereof. The prevailing Party in any such arbitration shall be entitled to recover its reasonable attorneys' fees and costs.

(ii) Equitable Relief. Client acknowledges that the restrictions contained in Sections 8, 19, and 21, in view of the nature of Company's business, are reasonable and necessary to protect the legitimate interests of Company. Client acknowledges that any violation of such restrictions would result in irreparable injuries to Company, and Client therefore acknowledges that, in the event Company proves Client's violation of any of these

restrictions, Company shall be entitled to obtain from any court of competent jurisdiction preliminary and permanent injunctive relief for the period of the restriction, without proving actual damage or immediate or irreparable harm and without posting any bond. In addition, Company shall be entitled to damages and an equitable accounting of all earnings, profits and other benefits arising from such violation, which rights shall be cumulative and in addition to any other rights or remedies to which Company may be entitled. If the time or other limitations specified in this Agreement should be adjudged to exceed limitations permitted by applicable law in any proceeding, then the affected provisions shall be deemed reformed in such jurisdiction to the maximum time, geographic, product or service or other limitations permitted by applicable law.

12. NOTICES.

Any notice required or permitted by this Agreement shall be in writing and delivered by personal delivery with receipt, nationally recognized overnight courier, or email, to the addresses set forth herein or to such other address or email address as a Party designates in writing.

13. SEVERABILITY.

In the event that any provision of this Agreement is deemed to be invalid or unenforceable, in whole or part, that part shall be severed from the remainder of this Agreement, and all other provisions shall remain in full force and effect as valid and enforceable.

14. GOVERNING LAW.

Parties agree that this Agreement shall be governed by the laws of the Commonwealth of Pennsylvania.

15. ENTIRE AGREEMENT.

Parties acknowledge that this Agreement sets forth and represents the entire agreement between both Parties. If Parties are willing to change/add/modify any terms, they shall be in writing and signed by both Parties.

16. HIPAA COMPLIANCE.

In the performance of the Services under this Agreement, Company may have access to Protected Health Information (PHI) as defined by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and its implementing regulations. Parties agree to comply strictly with all applicable state and federal laws regarding the privacy and security of PHI and the attached Business Associate Addendum ("BAA"). The terms of the BAA are hereby incorporated into this Agreement by reference. In the event of any conflict between the terms of this Agreement and the terms of the BAA regarding the use or disclosure of PHI, the terms of the BAA shall strictly control and supersede.

17. WAIVER OF BREACH.

No failure by either party to insist upon the strict performance of any covenant, agreement, term or condition of this Agreement or to exercise a right or remedy shall constitute a waiver. No waiver of any breach shall affect or alter this Agreement, but each and every covenant, condition, agreement and term of Agreement shall continue in full force and effect with respect to any other existing or subsequent breach.

18. INSURANCE.

Each Party shall maintain insurance coverage appropriate to the nature and scope of the services performed under this Agreement. Upon written request, each Party shall provide the other with certificates of insurance evidencing such coverage.

19. INTELLECTUAL PROPERTY.

(i) Client acknowledges and agrees that all technology, software platforms, clinical workflows, care plan templates, reporting formats, methodologies, training materials, algorithms, and any other tools, systems, or processes developed or owned by Company prior to or independently of this Agreement (collectively, "Company IP") are and shall remain the sole and exclusive property of Company. Nothing in this Agreement shall be construed as a transfer, assignment, or license of any Company IP to Client beyond what is strictly necessary for Client to receive the Services during the Term.

(ii) Any reports, data logs, care summaries, or documentation created by Company specifically for Client under this Agreement ("Work Product") shall be considered works made for hire to the extent permitted by law. To the extent any Work Product does not qualify as a work made for hire, Company hereby assigns to Client all right, title, and interest in such Work Product solely to the extent it contains Client's patient-specific clinical data. All underlying methodologies, templates, and formats used to generate such Work Product remain Company IP.

(iii) Company grants Client a limited, non-exclusive, non-transferable, revocable license to use Company's software platform and reporting tools solely for the purposes contemplated by this Agreement during the Term. This license terminates automatically upon expiration or termination of this Agreement.

(iv) Client shall not copy, reverse engineer, decompile, or attempt to derive the methodology or structure of any Company IP, nor shall Client use any Company IP to build or assist a third party in building a competing service or platform.

(v) Upon termination, Client shall immediately cease use of all Company IP, return or destroy any Company materials in its possession, and certify in writing to Company that it has done so within ten (10) days of the termination date.

20. REGULATORY COMPLIANCE.

(i) Parties expressly acknowledge that the compensation paid under this Agreement reflects the fair market value of Services rendered, as independently determined, and was negotiated at arm's length without regard to the volume or value of referrals or other business generated between Parties.

(ii) Parties acknowledge that this Agreement is intended to comply with the Federal Anti-Kickback Statute, 42 U.S.C. § 1320a-7b(b), and applicable state equivalents. No remuneration paid or received under this Agreement is intended to induce, solicit, or reward referrals of patients or items or services reimbursable under Medicare, Medicaid, or any other federal or state healthcare program. Parties agree to promptly notify each other if either Party believes any provision of this Agreement may violate the Anti-Kickback Statute and to cooperate in good faith to restructure such provision.

(iii) To the extent applicable, Parties intend for this Agreement to comply with the Physician Self-Referral Law, 42 U.S.C. § 1395nn ("Stark Law"), and its implementing regulations. The compensation structure hereunder is not determined in a manner that takes into account the volume or value of referrals between Parties.

(iv) Each Party represents and warrants that, as of the Effective Date, neither it nor any of its owners, officers, directors, employees, or clinical personnel performing Services hereunder is excluded, debarred, or suspended from participation in Medicare, Medicaid, or any federal or state healthcare program. Each Party further agrees

to promptly notify the other in writing if it becomes aware of any such exclusion occurring during the Term. In the event either Party or any of its personnel becomes excluded, the non-breaching Party shall have the right to terminate this Agreement immediately upon written notice, without penalty.

(v) Parties agree to monitor and comply with all applicable CMS guidance, Medicare Learning Network publications, and regulatory updates pertaining to billing, and to cooperate in good faith to amend this Agreement as necessary to maintain compliance with any material changes in applicable law or regulation.

(vi) Parties agree in the event of any change in Medicare regulations, CMS guidance, or applicable law that would render any provision of this Agreement, including the structure of Company's clinical staffing model set forth in Section 1, non-compliant or ineligible for reimbursement, Company shall have the right to modify the affected provision(s) and the corresponding Exhibit(s) upon thirty (30) days' written notice to Client, to the minimum extent necessary to maintain compliance and preserve Client's billing eligibility. If Client objects to such modification, Client may terminate this Agreement upon fifteen (15) days' written notice without triggering the non-solicitation provision in Section 6(i), provided such termination notice is given within thirty (30) days of Company's notice of modification.

21. DATA OWNERSHIP AND ANALYTICS.

(i) As between Parties, Client retains ownership of all individually identifiable patient data and Protected Health Information (PHI) generated in connection with this Agreement, subject to the terms of the Business Associate Addendum attached hereto as Exhibit C.

(ii) Notwithstanding the foregoing, Company shall have the exclusive right, title, and interest in and to any data that has been de-identified in accordance with 45 C.F.R. § 164.514 and any aggregate, anonymized, or statistical data derived from the Services performed under this Agreement ("Aggregate Data"). Aggregate Data does not constitute PHI and is not subject to the restrictions of the BAA. Company may use Aggregate Data for any lawful business purpose, including without limitation product development, benchmarking, performance analytics, research, and marketing, provided that such use does not identify Client, its patients, or its practitioners without prior written consent.

(iii) Company shall retain ownership of all operational, technical, and platform-generated data, including system logs, usage data, device telemetry (to the extent not constituting PHI), and performance metrics generated through Company's software platform.

(iv) Nothing in this Section shall be construed to permit Company to sell, transfer, or otherwise monetize PHI as that term is defined under HIPAA and the HITECH Act. Any use of data that could constitute a "sale of PHI" under 45 C.F.R. § 164.502(a)(5)(ii) is expressly prohibited without the written authorization of the applicable patient.

(v) Company's rights in Aggregate Data and de-identified data under this Section shall survive the termination or expiration of this Agreement.

22. FORCE MAJEURE.

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement to the extent such delay or failure is caused by circumstances beyond that Party's reasonable control, including without limitation acts of God, pandemic, government action, regulatory change, telecommunications failure, or natural disaster. The affected Party shall provide prompt written notice and use reasonable efforts to resume performance as soon as practicable.

23. INDEPENDENT CONTRACTOR.

Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, employment, or agency relationship between the Parties. Neither Party shall have the authority to bind the other or incur obligations on the other's behalf.

ACCEPTANCE AND SIGNATURE.

IN WITNESS WHEREOF, the Parties agree to the terms and conditions set forth above as demonstrated by their signatures as follows:

Client

Company

Date:

Date:

By:

By:

Title:

Title: CEO / Managing Member

EXHIBIT A — FEES

CPT Code	Service Description	Flat Fee (Invoice)
99490	CCM: Initial 20 minutes of clinical staff time.	\$48.29
99439	CCM: Each additional 20 minutes of clinical staff time (limit 2).	\$37.31
99487	Complex CCM: Initial 60 minutes of clinical staff time.	\$112.43
99489	Complex CCM: Each additional 30 minutes of clinical staff time (no limit).	\$58.62
99453	RPM: Initial device setup and patient education.	\$15.19
99445	RPM: Device supply and 2-15 days of data transmission.	\$38.56
99445	RPM: Software platform, cellular connectivity, and data transmission management (device supplied by Client).	\$25.22
99454	RPM: Device supply and 16+ days of data transmission.	\$39.56
99454	RPM: Software platform, cellular connectivity, and data transmission management (device supplied by Client).	\$26.22
99470	RPM: Initial 10 minutes of clinical staff time.	\$19.02
99457	RPM: Initial 20 minutes of clinical staff time.	\$38.83
99458	RPM: Each additional 20 minutes of clinical staff time.	\$29.82
99426	PCM: Initial 30 minutes of clinical staff time (general supervision).	\$50.32
99427	PCM: Each additional 30 minutes of clinical staff time.	\$39.42
98975	RTM: Initial device setup and patient education (per episode of care).	\$15.42
98976	RTM: Device supply and 16–30 days of respiratory monitoring.	\$37.44
98977	RTM: Device supply and 16–30 days of musculoskeletal (MSK) monitoring.	\$31.23
98984	RTM: Device supply and 2–15 days of respiratory monitoring.	\$36.72
98985	RTM: Device supply and 2–15 days of musculoskeletal (MSK) monitoring.	\$36.72
98979	RTM: Treatment management, 10–19 minutes of clinical staff time.	\$19.26
98980	RTM: Initial 20 minutes of treatment management clinical staff time.	\$39.42
98981	RTM: Each additional 20 minutes of treatment management clinical staff time.	\$29.52
99484	BHI: Initial 20 minutes of clinical staff time.	\$42.18

Company designated

Company shall procure and supply all devices to patients. Device costs are incorporated into Company's applicable service fees as set forth above. In the event Client materially breaches this Agreement, Client shall be obligated to pay Company for the full original cost of all devices shipped to patients as of the breach date, as determined by Company's actual procurement records at the time of purchase, regardless of whether such devices are returned. Client shall have no obligation to pay for devices under this provision in connection with a termination pursuant to Section 6(i) (Free Exit Window or Buyout Exit).

Client designated — Client shall be solely responsible for procuring, supplying, and shipping all devices to patients within thirty (30) days as required under Milestone 2 of this Agreement. Failure to do so within such period shall entitle Company to suspend services, terminate the Agreement, or assume device procurement responsibility, all at Company's sole option and discretion.

EXHIBIT B — FORM OF CONSENT

PATIENT CONSENT FOR CARE MANAGEMENT SERVICES

Provided by Continuum Care Management in partnership with your Healthcare Provider

Patient Information Section:

- Patient Name: _____
- Date of Birth: _____
- Phone Number: _____
- Primary Care Provider: _____

Program Selection:

Note: Medicare rules do not allow certain programs to be billed for the same patient in the same calendar month. CCM and PCM are mutually exclusive, as are RPM and RTM — only one of each pair should be selected.

Remote Physiologic Monitoring (RPM): Daily tracking of your vital signs using a cellular-connected medical device sent to your home.

Remote Therapeutic Monitoring (RTM): Monitoring of your musculoskeletal or respiratory status using a therapeutic device sent to your home (cannot run alongside RPM in the same month).

Chronic Care Management (CCM): Monthly non-face-to-face care coordination and support for two or more chronic conditions.

Principal Care Management (PCM): Monthly non-face-to-face care management focused on a single serious chronic condition (cannot run alongside CCM in the same month).

Behavioral Health Integration (BHI): Monthly care coordination and support for a behavioral health condition.

Program Details & Patient Agreement:

By signing below, I agree to enroll in the Care Management program(s) selected above and authorize Continuum Care Management's clinical staff to provide these services under the direction of my healthcare provider. I understand and acknowledge the following:

- Cost-Sharing: These programs are covered by Medicare Part B and many commercial insurance plans. I understand that standard deductibles and a 20% co-insurance may apply, just like a regular in-office doctor's visit. (Note: If you have a secondary or Medigap insurance plan, this co-pay is often covered in full).
- Single Provider Rule: I understand that only one medical provider or hospital can bill Medicare for these specific care management services during a single calendar month.
- Right to Opt-Out: Enrollment in this program is completely voluntary. I have the right to decline or unenroll from these services at any time by notifying my healthcare provider or Continuum Care Management, with the cancellation taking effect at the end of the current month.
- Consent to Be Contacted: I authorize Continuum Care Management and my healthcare provider to contact me about these services at the phone number, email, and mailing address I provide, including by phone call, text/SMS message, and email. Message and data rates may apply. I may withdraw this consent at any time by notifying Continuum Care Management.

• Not Real-Time or Emergency Monitoring: I understand this is not a 24/7, real-time, or emergency monitoring service. My device readings and health information are reviewed by clinical staff during normal business hours (Monday–Friday, 9:00 AM–6:00 PM ET, excluding holidays), and there may be a delay between when a reading is taken and when it is reviewed. This service is not for medical emergencies — if I am experiencing an emergency or believe my health is in immediate danger, I will call 911 or go to the nearest emergency room. For urgent, non-emergency concerns at any time, including outside business hours, I can contact my healthcare provider's office.

Patient Signature: _____ Date: _____

EXHIBIT C — BUSINESS ASSOCIATE ADDENDUM

RECITALS

The purpose of this Exhibit is to comply with certain requirements of the Standards for Privacy of Individually Identifiable Health Information, the Security Standards for the Protection of Electronic Health Information, and the Standards for Notification in the Case of Breach of Unsecured Protected Health Information 45 C.F.R. Part 160 and Part 164 (collectively the "Privacy, Security, and Breach Notification Regulations") under the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), and as modified by the Health Information Technology for Economic and Clinical Health Act of 2009 ("HITECH") that involve the use and/or disclosure of Protected Health Information (as defined below, and including but not limited to Electronic Protected Health Information) that is used or disclosed by Business Associate for or on behalf of Covered Entity in connection with those certain services furnished by Business Associate pursuant to the Agreement (the "Agreement") to which this addendum is an exhibit.

1. DEFINITIONS

- (a) Catch-all definition: Terms used, but not otherwise defined, in this Exhibit shall have the same meaning as those terms are given when defined in the Privacy and Security, and Breach Notification Regulations.
- (b) "Availability" shall mean the same as it means at 45 C.F.R. § 164.304.
- (c) "Breach" shall mean the same as it means in 45 C.F.R. § 164.402.
- (d) "Business Associate" shall mean Company.
- (e) "Confidentiality" shall mean the same as it means at 45 C.F.R. § 164.304.
- (f) "Covered Entity" shall mean Client
- (g) "Days" shall mean calendar days, unless a provision herein specifies "business days.
- (h) "Electronic Protected Health Information" or "EPHI" shall mean the same as it means at 45 C.F.R. § 160.103.
- (i) "Integrity" shall mean the same as it means at 45 C.F.R. § 164.304.
- (j) "Protected Health Information" or "PHI" shall have the meaning set forth at 45 C.F.R. § 160.103.
- (k) "Required by Law" shall mean the same as it means at 45 C.F.R. § 164.103.
- (l) "Security Incident" shall mean the same as it means at 45 C.F.R. § 164.304.
- (m) "Security Measures" shall mean the same as it means at 45 C.F.R. § 164.304.
- (n) "Subcontractor" shall mean the same as it means at 45 CFR § 160.103.
- (o) "Unsecured Protected Health Information" or "UPHI" shall mean the same as it means in 45 C.F.R. § 164.402.

2. OBLIGATIONS AND ACTIVITIES OF BUSINESS ASSOCIATE

- (a) Business Associate agrees to not use or disclose Protected Health Information other than as permitted or required by this Exhibit or as Required By Law.
- (b) Business Associate agrees to use appropriate Security Measures to prevent use or disclosure of the Protected Health Information other than as provided for by this Exhibit. With respect to EPHI, Business Associate agrees to develop, implement, maintain and use appropriate and reasonable Administrative, Physical, and Technical safeguards to insure the Integrity, Confidentiality and Availability of, and to prevent

non-permitted uses and disclosures of EPHI that it creates, receives, maintains, or transmits on behalf of Covered Entity. Business Associate Acknowledges and agrees that it will implement and document its Security Measures in order to comply with sections 164.308, 164.310, 164.312, 164.314 and 164.316 of Title 45 of the Code of Federal Regulations.

(c) Business Associate agrees to mitigate, to the extent practicable, any harmful effect that is known to Business Associate of a use or disclosure of Protected Health Information by Business Associate, or an agent or Subcontractor of Business Associate, in violation of the requirements of this Exhibit.

(d) Business Associate agrees to report to Covered Entity any use or disclosure by the Business Associate of Protected Health Information not provided for by this Exhibit of which it becomes aware. Business Associate will report to Covered Entity within thirty (30) days any Security Incident of which it becomes aware that results in an unauthorized access, use modification, destruction or disclosure of EPHI or interference with information systems for EPHI. Business Associate will report to Covered Entity within thirty (30) days of receipt of a written request any Security Incident of which it becomes aware that was an unsuccessful attempt to obtain unauthorized access, use modification, destruction or disclosure of EPHI or interference with information systems for EPHI. Business Associate will report unauthorized disclosures or Security Incidents to Covered Entity's designated contact in the Agreement.

(e) If Business Associate and/or Covered Entity access, maintain, retain, modify, record, store, destroy, or otherwise hold, use, or disclose UPHI, and Business Associate becomes aware of a Breach of such UPHI, Business Associate shall notify Covered Entity of such Breach without unreasonable delay, but in no case later than thirty (30) days of discovery of such Breach in accordance with the requirements of 45 C.F.R. § 164.410(a) and 164.410(c). Such notice shall include the identification of each individual whose UPHI has been, or is reasonably believed by Business Associate to have been, accessed, acquired, or disclosed during such Breach, as well as any other available information that Covered Entity must report under 45 C.F.R. § 164.404(c). Business Associate shall continue to provide such information to Covered Entity as Business Associate becomes aware of it.

(f) Business Associate shall enter into a business associate agreement with any agent, including a Subcontractor, to whom it provides Protected Health Information (including EPHI and UPHI) received from, or created or received by Business Associate on behalf of Covered Entity containing the same restrictions and conditions that apply through this Exhibit to Business Associate with respect to such information.

(g) Business Associate agrees to provide access to and copies of Protected Health Information maintained in a Designated Record Set, to Covered Entity or, when requested in writing by Covered Entity, to an Individual in order for Covered entity to meet the requirements of 45 C.F.R. § 164.524. Business Associate shall provide access to and copies of Protected Health Information in a reasonable time, not to exceed two (2) days and, in a reasonable manner.

(h) Business Associate agrees to make its internal practices, books, and records relating to the use and disclosure of Protected Health Information received from, or created or received by Business Associate on behalf of Covered Entity, available to the Secretary, in the time and manner designated by the Secretary, for purposes of the Secretary determining Covered Entity's compliance with 45 C.F.R. Part 160 and Part 164, Subparts A and E. Upon receipt of a request from the Secretary, Business Associate shall notify Covered Entity in writing unless such notification would be contrary to law.

(i) Business Associate agrees to make any amendment(s) to Protected Health Information in a Designated Record Set that Covered Entity determines is required to enable Covered Entity to comply with 45 C.F.R. § 164.526. Except for good cause shown in writing to Covered Entity, Business Associate shall act upon Covered Entity's request for an amendment within thirty (30) days of receipt Covered Entity's request.

(j) Business Associate agrees to identify, track and document such disclosures of Protected Health Information and information related to such disclosures as would be required for Covered Entity to respond to a request by an Individual for an accounting of disclosures of Protected health Information in accordance with 45 C.F.R. § 164.528. Upon Covered Entity's written request, Business Associate shall furnish to Covered Entity a copy of

its policies or procedures that it has, and will maintain, that describe how it carries out its obligations under this subsection.

(k) Business Associate agrees to provide to Covered Entity or to an Individual, in writing and not later than thirty (30) days after receiving a request under this subsection (i), information collected in accordance with the foregoing sub-section (h) of this Section 2 of this Exhibit, to permit Covered Entity to respond to a request by an Individual for an accounting of disclosures of Protected Health Information in accordance with 45 C.F.R. § 164.528.

(l) If Business Associate knows of a pattern of activity or practice of Covered Entity that constitutes a material breach or violation of the Covered Entity's obligation under this Exhibit, Business Associate shall take reasonable steps to demand a cure of the breach or an end to the violation, as applicable; and, if such steps are unsuccessful: (A) Business Associate will either terminate the Agreement and this Exhibit, if feasible; or (B) if termination is not feasible, report the problem to the Secretary.

3. PERMITTED USES AND DISCLOSURES BY BUSINESS ASSOCIATE

(a) Except as otherwise provided in this Exhibit, Business Associate shall use or disclose Protected Health Information only in a manner permitted by the Privacy, Security, and Breach Notification Regulations if done by Covered Entity.

(b) Except as otherwise limited in this Exhibit, Business Associate may use Protected Health Information for the proper management and administration of Business Associate or to carry out the legal responsibilities of Business Associate.

(c) Except as otherwise limited in this Exhibit, Business Associate may disclose Protected Health Information for the proper management and administration of Business Associate, provided that disclosures are Required By Law, or Business Associate obtains reasonable assurances from the person to whom the information is disclosed that it will remain confidential and used or further disclosed only as Required By Law, or for the purpose for which it was disclosed to the person, and the person notified the Business Associate of any instances of which it is aware in which the confidentiality of the information has been breached.

(d) Covered Entity hereby authorizes Business Associate to (i) provide Data Aggregation services relating to the health care operations of Covered Entity as permitted by 45 C.F.R. § 164.504(e)(2)(i)(B), and (ii) de-identify Protected Health Information in accordance with 45 C.F.R. § 164.514. Such de-identified and aggregate data may be used by Business Associate as set forth in Section 21 of the Agreement, and this authorization satisfies any written authorization requirement under this Exhibit.

4. OBLIGATIONS OF COVERED ENTITY

(a) Covered Entity shall notify Business Associate of any limitation(s) in its notice of privacy practices, prepared for compliance with 45 C.F.R. § 164.520, to the extent that such limitation may affect Business Associate's use or disclosure of Protected Health Information.

(b) Covered Entity shall notify Business Associate of any changes in, or revocation of, permission by Individual to use or disclose Protected Health Information, to the extent that such changes may affect Business Associate's use or disclosure of Protected Health Information.

(c) Covered Entity shall notify Business Associate of any restriction to the use or disclosure of Protected Health Information that Covered Entity has agreed to in accordance with 45 C.F.R. § 164.522, to the extent that such restriction may affect Business Associate use or disclosure of Protected Health Information.

(d) Covered Entity shall not request Business Associate to use or disclose Protected Health Information in any manner that would not be permissible under the Privacy, Security, and Breach Notification Regulations if done by Covered Entity.

5. TERMS AND TERMINATION

(a) Term. The term of this Exhibit shall be effective as of the Effective Date, and shall terminate when all of the Protected Health Information provided by Covered Entity to Business Associate, or created or received by Business Associate on behalf of Covered Entity, is destroyed or returned to Covered Entity; or, if it is infeasible to return or destroy Protected Health Information, protections are extended to such information, in accordance with the termination provisions in this Section.

(b) Termination by the Covered Entity. Covered Entity may immediately terminate this Exhibit and the Agreement if the Covered Entity makes the determination that Business Associate has breached a material term of this Exhibit. Alternatively, the Covered Entity may choose to: (i) provide Business Associate with 30 days written notice of the existence of an alleged material breach; and (ii) afford Business Associate an opportunity to cure said alleged material breach upon mutually agreeable terms. Nonetheless, in the event that mutually agreeable terms cannot be achieved within 30 days, Business Associate must cure said breach to the satisfaction of the Covered Entity. Failure to cure in the manner set forth in this paragraph is grounds for the immediate termination of this Exhibit and the Agreement. Nothing contained in this Section shall be deemed to require the Covered Entity to terminate this Exhibit if termination is not feasible.

(c) Termination by Business Associate. If Business Associate makes the determination that a condition material to the performance of this Exhibit has changed under the Agreement or this Exhibit, or that the Covered Entity has breached a material term of this Exhibit, Business Associate may provide (30) days notice of its intention to terminate this Exhibit and the Agreement. Business Associate agrees, however, to cooperate with Covered Entity find a mutually satisfactory resolution to the matter prior to terminating and further agrees that, notwithstanding this provision, it shall not terminate this Exhibit so long as any Agreement is in effect.

(d) Automatic Termination. This Exhibit will automatically terminate without any further action of the Parties upon the termination or expiration of the Agreement in effect between the Parties.

(e) Effect of Termination. Upon any termination pursuant to this Section 5, Business Associate agrees to return or destroy all Protected Health Information pursuant to 45 C.F.R. § 164.504(e)(2)(ii)(I), if it is feasible to do so. Prior to doing so, Business Associate further agrees to recover any Protected Health Information in the possession of its Subcontractors or agents. If it is not feasible for Business Associate to return or destroy said Protected Health Information, Business Associate will notify the Covered Entity in writing. Said notification shall include: (i) a statement that Business Associate has determined that it is infeasible to return or destroy the Protected Health Information in its possession, and (ii) the specific reason for such determination, which reasons must be agreed to by Covered Entity. Business Associate further agrees to extend any and all protections, limitations and restrictions contained in this Exhibit to Business Associate's use and/or disclosure of any Protected Health Information retained after the termination of this Exhibit, and to limit any further uses and/or disclosures to the purposes that make the return or destruction of the Protected Health Information infeasible. If it is infeasible for Business Associate to obtain Protected Health Information from a Subcontractor or agent, Business Associate must provide a written explanation to the Covered Entity and require the Subcontractors and agent to agree to extend any and all protections, limitations and restriction contained in this Exhibit to the Subcontractors' and/or agents' use and/or disclosure of any Protected Health Information retained after the termination of this Exhibit, and to limit any further uses and/or disclosures to the purposes that make the return or destruction of the Protected Health Information infeasible.

6. MISCELLANEOUS

(a) Regulatory References. A reference in this Exhibit to a section in the Privacy, Security, and Breach Notification Regulations means the section as in effect or as amended.

(b) Amendment. The parties agree to take such action as is necessary to amend this Exhibit from time to time as is necessary for Covered Entity to comply with the requirement of the Privacy, Security, and Breach Notification Regulations and the Health Insurance Portability and Accountability Act of 1996, Pub. L. No. 104-191.

(c) Survival. The respective rights and obligations of Business Associate under Section 5(e) of this Exhibit shall survive the termination of this Exhibit.

(d) Interpretation. Any ambiguity in this Exhibit shall be resolved to permit Covered Entity to comply with the Privacy, Security, and Breach Notification Regulations.

(e) No Third Parties. This Exhibit shall inure to the benefit of, and be binding upon, the parties and their respective successors and assigns. There are no third parties to this Exhibit and nothing herein is intended for the benefit of a third person.

(f) Coordination of Documents. In the event of a conflict between a provision of this Exhibit and a provision of the Agreement, the provision of this Exhibit shall control.

(g) Choice of Law. This Exhibit shall be governed and construed by applicable federal law and by the laws of the State where Covered Entity is physically located without regard to laws relating to choice of law or conflicts of law.

7. OWN ACTS

Nothing herein shall be construed to require either party to indemnify, defend or hold harmless the other for any act, omission or breach of this Exhibit. Each party shall be solely responsible for its own acts but shall have available to it all with respect to the other party all remedies in equity and at law.

8. NOTICE

All notices, requests, demands and other communications required or permitted to be given or made under this Exhibit shall be in writing, shall be effective upon receipt of attempted delivery, and shall be sent by (a) personal delivery; (b) certified or registered United States mail, return receipt requested; (c) overnight delivery service with proof of delivery; or (d) facsimile with return facsimile acknowledging receipt. Except as otherwise herein provided, notices shall be sent to the address specified in the Agreement. Neither party shall refuse delivery of any notice hereunder.

9. DISPUTES

If any controversy, dispute, or claim arises between the Parties with respect to this Exhibit, the Parties shall make good faith efforts to resolve such matters informally.

10. CHANGE OF LAW

The Parties shall amend this Exhibit as necessary to comply with any subsequent changes or requirements imposed by changes to the Privacy, Security, and Breach Notification Regulations.